



CONDOMINIUM CONVERSION ADDENDUM

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ADDENDUM TO NEW RESIDENTIAL CONDOMINIUM CONTRACT CONCERNING

A. SELLER'S DISCLOSURE NOTICE PURSUANT TO §5.008, PROPERTY CODE (Notice): *(Check one box only.)*

- ☐ (1) Buyer has received the Notice.
- ☐ (2) Buyer has not received the Notice. Within _____ days after the effective date of the contract, Seller shall deliver the Notice to Buyer. If Buyer does not receive the Notice, Buyer may terminate this contract at any time prior to closing. If Seller delivers the Notice, Buyer may terminate the contract for any reason within 7 days after Buyer receives the Notice or prior to the closing, whichever first occurs.
- ☐ (3) The Texas Property Code does not require this Seller to furnish the Notice.

B. SELLER'S DISCLOSURE OF LEAD-BASED PAINT AND LEAD-BASED PAINT HAZARDS is required by Federal law for a residential dwelling constructed prior to 1978. An addendum providing such disclosure ☐ is ☐ is not attached to the contract.

Buyer

Seller

Buyer

Seller

Note: Section 5.008, Property Code requires a seller of residential real property comprising not more than one dwelling unit to give to the purchaser a seller's disclosure notice as prescribed by that section. Section 5.008 does not apply to a transfer:

- (1) pursuant to a court order or foreclosure sale;
- (2) by a trustee in bankruptcy;
- (3) to a mortgage by a mortgagor or successor in interest, or to a beneficiary of a deed of trust by a trustor or successor in interest;
- (4) by a mortgagee or a beneficiary under a deed of trust who has acquired the real property at a sale conducted pursuant to a power of sale under a deed of trust or a sale pursuant to a court ordered foreclosure or has acquired the real property by a deed in lieu of foreclosure;
- (5) by a fiduciary in the course of the administration of a decedent's estate, guardianship, conservatorship, or trust;
- (6) from one co-owner to one or more other co-owners;
- (7) made to a spouse or to a person or persons in the lineal line of consanguinity of one or more of the transferors;
- (8) between spouses resulting from a decree of dissolution of marriage or a decree of legal separation or from a property settlement agreement incidental to such a decree;
- (9) to or from any governmental entity;
- (10) transfers of new residences of not more than one dwelling unit which have not previously been occupied for residential purposes; or
- (11) transfers of real property where the value of any dwelling does not exceed five percent (5%) of the value of the property.